

Court No. - 32

Case :- WRIT - C No. - 16007 of 2008

Petitioner :- Smt Amna Khatoon

Respondent :- Pvvnl & Another

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- H.P. Dube,Sc

Hon'ble R.K. Agrawal,J.

Hon'ble Mrs. Jayashree Tiwari,J.

Passed over on the illness slip of Sri H.P. Dube.

Order Date :- 2.4.2010

AM/-

Court No. - 32

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Petitioner :- Smt Amna Khatoon

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Petitioner Counsel :- B.C. Rai

Respondent Counsel :- H.P. Dube,Sc

Hon'ble R.K. Agrawal,J.

Hon'ble Abhinava Upadhya,J.

(Order on Civil Misc.Substitution Application No.184294 of 2008)

The sole petitioner has died on 25.4.2008. The application for substitution was filed on 7th August, 2008. The short delay in filing the substitution application is hereby condoned and the application be treated as having been filed within limitation.

Heard learned counsel for the applicant-petitioner and Sri H.P.Dube, learned counsel for the respondents.

There is no objection filed on behalf of the respondents. Thus, the substitution application is allowed. Let the persons mentioned in paragraph-2 of the affidavit be brought on record as heirs and legal representatives of the petitioner and their names be incorporated in the array of the parties.

List the petition in the next cause list.

Order Date :- 9.4.2010

SKM

Court No. - 9

Case :- WRIT - C No. - 16007 of 2008

Petitioner :- Smt Amna Khatoon

Respondent :- Pvvnl & Another

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- H.P. Dube,Sc

Hon'ble Vijay Manohar Sahai,J.

Hon'ble Mrs. Jayashree Tiwari,J.

List in the next cause list showing the name of Shri Pankaj Shukla as counsel for the respondent.

Order Date :- 4.8.2010

Anupam

Court No. - 9

Case :- WRIT - C No. - 16007 of 2008

Petitioner :- Smt Amna Khatoon

Respondent :- Pvvnl & Another

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- H.P. Dube,Sc

Hon'ble D.S.R. Varma,J.

Hon'ble Abhinava Upadhya,J.

The provisional assessment order dated 7.3.2008 is under challenge before this Court, by which respondents called for objections, if any. Hence the writ petition.

The brief backdrop of the case is that on an earlier occasion when a demand notice was issued, a Division Bench of this Court in writ petition No. 43872 of 2007 disposed of the said writ petition with the following observations and directions:-

" Sri H.P.Dubey appearing for the Corporation submits that the demand notice dated 1.6.2007 may be considered by the petitioner as a provisional assessment made under Section 126(4) of the Act and in case he files an objection within 15 days from today, the authority will consider it and pass a fresh order under Section 126(4) of the Act.

As the order dated 1.6.2007 does not contain reasons, it will not be possible for the petitioner to file objections. Therefore, we dispose of the present writ petition directing the respondent authority to make a provisional assessment following the procedure under Section 126(4) of the Act and serve the same upon the petitioner, giving him two weeks' time to file the objection. In case the petitioner submits the objection the respondent authority shall pass a fresh order under Section 126(4) in accordance with law within two weeks thereafter. In view of the above, the demand notice dated 1.6.2007 is hereby quashed and the respondents may proceed in accordance with law".

It is needless to emphasise that in case the petitioner is aggrieved by the final assessment order to be passed as indicated above, he may file an appeal under Section 127 of the Act."

From the above, it has been categorically stated that the present impugned order dated 1.6.2007 does not contain reasons and therefore, it was not possible for the petitioner to file any objection and in that context certain directions as above have been given to the respondents.

Pursuant thereto the respondents had issued a provisional assessment order dated 7.3.2008, which is now being impugned in this writ petition.

Learned counsel for the petitioner challenges the said order on the ground that the procedure in the order to invoke Section 126(4) of the Act was not as per Clauses and 8.1 of U.P. Electricity Supply Code, 2005. Therefore, his contention is that since the said procedure was not followed, the order of provisional assessment, which is under challenge now, cannot be sustained. Also his further contention that the assessment order was made for 407 days instead of 180 days as contemplated under the said provisions.

This is a question of calculation, which this Court cannot go into.

Furthermore, what has been directed by the earlier Division Bench in writ petition No. 43872 of 2007 was that the respondents shall pass an order of provisional assessment and then the petitioner would be at liberty to offer his objections and thereafter respondents have to pass final orders, under which circumstance the petitioner has to avail his alternative remedy provided under Section 127 of the Electricity Act, 2003. Now it is obvious that the provisional assessment has been given by virtue of the impugned order. The validity or otherwise as contented by the learned counsel for the petitioner cannot be gone into by this Court.

In our considered view, all these objections as have been mentioned above, among various other grounds, can be raised and agitated by way of filing his objections as was called for by the respondents.

Therefore, we are finally disposing of this writ petition giving liberty to the petitioner to offer his objections/explanation to the provisional assessment made by the respondents within a period of 15 days from the date of making of this order available by the office and thereafter the respondents will proceed in accordance with law with utmost expedition or as prescribed under

the law, as the case may be.

Before parting with the case we have to put on record another fact relating to this case. Initially this Court by order dated 27.3.08 granted an interim order of stay which is as under:-

"Till the next date of listing, the effect and operation of the order dated 7.3.08, a copy whereof is Annexure 5 to the writ petition, shall remain stayed."

The said interim directions were taken to Supreme Court by the respondents by way of Special Leave Petition and the apex court while disposing of the matter at the Special Leave Petition stage, vacated the interim directions. Therefore no interim directions whatsoever have been in operation in favour of the petitioner or is operating as on date .

Order Date :- 6.12.2010

SM